STANDARD OPERATING PROCEDURE	G-7110

SARPY COUNTY
SHERIFF'S OFFICE
PAPILLION * NEBRASKA
GREG LONDON
SHERIFF

DATE ISSUED	DATE REVISED	DATE REVIEWED
12/04/06	**05/15/15**	02/02/25

APPROVED:

GREG LONDON

CHAPTER TITLE	RESOURCES
GENERAL	FOP CONTRACT FAMILY AND MEDICAL LEAVE ACT OF 1993

SUBJECT	CROSS REFERENCE
FAMILY AND MEDICAL LEAVE ACT	G-7100 SICK LEAVE

I. Purpose:

The purpose of this policy is to establish the guidelines for the Family and Medical Leave Act.

II. Policy:

The Family and Medical Leave Act (FMLA) provides for twelve (12) weeks of unpaid leave for personal illness or care of an immediate family member. FMLA applies to those employees who have worked for at least twelve (12) months and at least 1250 hours during that twelve (12) month period.

III. Procedures:

A. Family and Medical Leave Act Guidelines:

1. Any employee may take unpaid leave under FMLA for any of the following reasons:

a) For care of a new born child.

b) For care of an adopted or foster child.

c) For care of a spouse, child, or parent who has a serious health condition.

d) Due to the employee's own serious health condition:

(1) Serious health condition is defined by FMLA as an illness, injury, impairment, or physical or mental condition that

involves inpatient care in a hospital, hospice, or residential medical care facility. Also included is any illness or injury that requires continuing treatment by a licensed physician.

(2) In the case of leave due to a serious health condition, the act allows for the employee to revert to a "reduced leave schedule." The employee may utilize a schedule that reduces the number of hours worked in a week or the number of hours worked in a day, but the employee is still entitled to a cumulative leave equal to 12 weeks.

(3) If an employee adopts the intermittent leave or reduced leave schedule for planned medical treatment, the Sheriff's Office has the right to require the employee to transfer temporarily to another position, but only if the employee is qualified, the position has the same pay and benefits, and the position better accommodates the employee's new schedule. The Sheriff's Office may also require that the employee make a reasonable effort to schedule consecutive or intermittent leave so that the employee's leave of absence doesn't unduly disrupt the operations of the employer.

2. Once an employee utilizes any leave, that in conjunction with regular days off, total fourteen (14) calendar days or more to care for himself or herself, a spouse, a child or a parent, the employee shall be placed on FMLA leave and he or she shall be notified of the same.

3. FMLA does not require an employee take the twelve (12) week leave at one time. The Sheriff's Office is required to grant leave intermittently if the leave is due to serious illness of the employee, or one of the pertinent relatives of the employee, and medical treatment necessitates intermittent leave.

4. The Sheriff's Office may require an employee to exhaust paid leave (sick leave and vacation leave) as a portion of FMLA leave.

5. An employee who takes unpaid leave under FMLA does not lose any benefits gained before the leave began and shall still be considered maintaining continuous service for purposes of pension, other benefits and seniority status.

6. When it is possible to anticipate the need to take FMLA leave, the Sheriff's Office may require a thirty (30) day notice before the leave is to begin.

7. Certification may be required from a physician that there is a valid necessity for the twelve (12) week leave.

a) Additional information may be required such as the date the condition began, probable duration and/or a statement that the employee is needed to care for the child, spouse or parent.

b) If it is the employee that is ill, certification shall include a statement that the employee is unable to perform his or her duties.

8. If the Sheriff's Office doubts the validity of the certification, a second opinion may be required.

a) The second opinion shall be from a physician agreed upon by both the Sheriff's Office and the employee.

b) If the second opinion is at odds with the first opinion, a third opinion may be required from a physician agreed upon by both the Sheriff's Office and the employee. The third opinion shall become the final opinion, to which both parties shall be bound to honor.

c) The Sheriff's Office shall pay the costs of the second and third opinions.

9. Employees on FMLA leave shall not work off-duty employment without written permission from the Sheriff.

B. Maternity/Paternity Leave:

1. Employees shall be permitted to utilize twelve (12) calendar weeks of accumulated sick leave to care for a newly-born or newly-adopted child.

2. If an employee chooses to use FMLA leave to care for a child, the Sheriff's Office is not required to grant intermittent leave and the employee may be required to take the full twelve (12) weeks of leave at one time. The Sheriff's Office may require that leave to care for a newly-born or newly-adopted child be taken within twelve (12) months from the date of birth or placement.

3. If a married couple both work for the Sheriff's Office and request unpaid FMLA leave, the Sheriff's Office may opt to grant a total of twelve (12) weeks of leave to the couple instead of twelve (12) weeks to each the husband and the wife.